

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman., Department Advocate's Office, April 21, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-27681 against Police Officer Gerald McNair, Tax Registry No. 951996. The case was conferenced on April 15, 2025, before Assistant Deputy Commissioner of Trials Paul M. Gamble, who approved the negotiated penalty of a forfeiture of TWENTY (20) vacation days for DADS No. 2022-27681 after a guilty plea to the Charges and Specifications.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

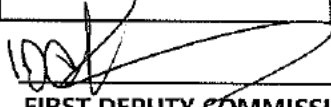
CASE NO.
C-031786BOOK & PAGE NO.
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PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, MCNAIR	FIRST GERALD	M.I.	COMMAND 872
SHIELD NO. 18042	TAX REGISTRY NO. 951996	SOCIAL SECURITY NO.	DATE APPOINTED 01/09/2012	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Gerald MCNAIR, on or about October 16, 2021, at approximately 0946, while assigned to TB M/TF and on duty, in the vicinity of Central Park North, 110th Street Subway station, New York County, wrongfully used force against § 87(2)(b) in that PO MCNAIR punching § 87(2)(b) about the face without police necessity.	PLEADED GUILTY	VACATION DAYS 20.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Police Officer Gerald MCNAIR, on or about October 16, 2021, at approximately 0946, while assigned to TB M/TF and on duty, in the vicinity of Central Park North, 110th Street Subway station, New York County, wrongfully used force against § 87(2)(b) in that PO MCNAIR pushed § 87(2)(b) about the shoulder without police necessity.	PLEADED GUILTY	
3. Police Officer Gerald MCNAIR, on or about May 4, 2022, at approximately 0948, while assigned to TB M/TF, in the vicinity of 100 Church Street, New York County provided an official inaccurate statement to the Civilian Complaint Review Board in that he denied punching § 87(2)(b) about the face.	PLEADED GUILTY	


FIRST DEPUTY COMMISSIONER09/04/25
DATE**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)
POLICE COMMISSIONER11/4/25
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, September 4, 2025. Contents noted. I reviewed the negotiated plea in PODS Case No. C-031786 (CCRB Case No. 202106441) against Police Officer Gerald McNair, Tax No. 951996, with the recommendation that Police Officer McNair forfeit twenty (20) vacation days. Assistant Deputy Commissioner; Trials Paul M. Gamble, Sr. reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

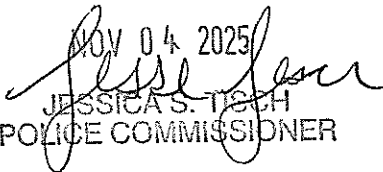


Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED

NOV 04 2025

JESSICA S. TISCH
POLICE COMMISSIONER